

**BEFORE THE
FEDERAL MARITIME COMMISSION**

AMERICAN IRON & METAL COMPANY
INC.

Complainant,

v.

PRIVA LOGISTICS INC.

Respondent.

DOCKET NO. 25-13

VERIFIED ANSWER

Complainant American Iron & Metal Company Inc. (“AIM”), by and through its undersigned attorneys hereby files this Verified Answer, in response to the Verified Counterclaim (“Counterclaim”) of Respondent Priva Logistics, Inc. (“Priva”), and alleges and avers as follows:

ANSWER

I. The allegations in Paragraph 1 do not require a response from AIM. To the extent a response is required, Paragraph 1 realleges and reincorporates by reference “all admissions, denials, and affirmative defenses” of its Answer to AIM’s Verified Complaint. Incorporation of responses to 33 separately enumerated paragraphs and ten affirmative defenses is improper and deprives AIM of the ability to provide a meaningful response.

II. Admitted.

III. AIM lacks sufficient knowledge or information to respond to the allegations of this paragraph and therefore denies the same.

IV. The allegations contained in this paragraph are conclusions of law, which do not require a response. To the extent this paragraph contains allegations of fact, those allegations are denied.

V. The allegations contained in this paragraph are conclusions of law, which do not require a response. To the extent this paragraph contains allegations of fact, those allegations are denied.

VI. The allegations contained in this paragraph are conclusions of law, which do not require a response. To the extent this paragraph contains allegations of fact, those allegations are denied.

VII. The allegations contained in this paragraph are conclusions of law, which do not require a response. To the extent this paragraph contains allegations of fact, those allegations are denied.

VIII. Admitted.

IX. Admitted in part, denied in part. AIM admits that Priva provided AIM with Booking Numbers NAM6677014 and NAM6677015. The remaining allegations in this paragraph are denied.

X. Admitted.

XI. The allegations contained in this paragraph reference a written document that speaks for itself, and all characterizations thereof are therefore denied.

XII. Admitted in part, denied in part. It is admitted only that pursuant to AIM's shipping instructions, Priva returned a draft bill of lading for the NAM6677014 Containers to AIM on February 14, 2024 by email. The remaining allegations contained in this paragraph reference a written email that speaks for itself, and all characterizations thereof are therefore denied.

XIII. The remaining allegations contained in this paragraph reference a written email that speaks for itself, and all characterizations thereof are therefore denied.

XIV. Admitted.

XV. Admitted in part, Denied in part. It is admitted only that on February 14, 2024, AIM provided Priva with shipping instructions for the ten containers to be transported under Booking Number NAM6677015. The remaining allegations in this paragraph refer to a written document/communication that speaks for itself and all characterizations thereof are therefore denied.

XVI. Admitted.

XVII. AIM lacks sufficient knowledge or information to respond to the allegations of this paragraph and therefore denies the same.

XVIII. Admitted.

XIX. Admitted.

XX. AIM lacks sufficient knowledge or information to respond to the allegations of this paragraph and therefore denies the same.

XXI. The allegations contained in this paragraph are conclusions of law, which do not require a response. To the extent this paragraph contains allegations of fact, AIM lacks sufficient knowledge or information to respond to the allegations of this paragraph and therefore denies the same.

XXII. The allegations contained in this paragraph are conclusions of law, which do not require a response. To the extent this paragraph contains allegations of fact, AIM lacks sufficient knowledge or information to respond to the allegations of this paragraph and therefore denies the same.

XXIII. Admitted in part, denied in part. It is admitted that AIM and Priva had discussions regarding the disposition of the containers. AIM lacks sufficient knowledge or information to respond to the remaining allegations of this paragraph and therefore denies the same.

XXIV. The allegations contained in this paragraph are conclusions of law, which do not require a response. To the extent this paragraph contains allegations of fact, AIM lacks sufficient knowledge or information to respond to the remaining allegations of this paragraph and therefore denies the same.

XXV. The allegations contained in this paragraph are conclusions of law, which do not require a response. To the extent this paragraph contains allegations of fact, AIM lacks sufficient knowledge or information to respond to the remaining allegations of this paragraph and therefore denies the same.

XXVI. The allegations contained in this paragraph are conclusions of law, which do not require a response. Further, the allegations contained in this paragraph reference a written document that speaks for itself, and all characterizations thereof are denied. To the extent a further response is required, AIM lacks sufficient knowledge or information to respond to the remaining allegations of this paragraph and therefore denies the same.

XXVII. The allegations contained in this paragraph are conclusions of law, which do not require a response. To the extent this paragraph contains allegations of fact, AIM lacks sufficient knowledge or information to respond to the remaining allegations of this paragraph and therefore denies the same.

XXVIII. The allegations contained in this paragraph are conclusions of law, which do not require a response. To the extent this paragraph contains allegations of fact, those allegations are denied.

XXIX. Admitted in part, Denied in part. AIM admits that it sought the release of containers identified in its complaint after Priva improperly held the containers and refused to release them in an unlawful attempt to assert a possessory lien or other form of leverage over AIM in a manner

that violates the Shipping Act of 1984, 46 U.S.C. §§ 40101, *et seq.* (the “Shipping Act”). AIM denies the remaining allegations of this paragraph.

XXX. The allegations contained in this paragraph are conclusions of law, which do not require a response. To the extent this paragraph contains allegations of fact, those allegations are denied.

XXXI. The allegations contained in this paragraph are conclusions of law, which do not require a response. To the extent this paragraph contains allegations of fact, those allegations are denied.

XXXII. Admitted in part, denied in part. AIM admits that on March 22, 2025, Priva sent an invoice to AIM. The remaining allegations contained in this paragraph reference a written document that speaks for itself and all characterizations thereof are therefore denied.

XXXIII. The allegations contained in this paragraph are conclusions of law, which do not require a response. To the extent this paragraph contains allegations of fact, those allegations are denied.

XXXIV. The allegations contained in this paragraph are conclusions of law, which do not require a response. To the extent this paragraph contains allegations of fact, those allegations are denied.

XXXV. The allegations contained in this paragraph are conclusions of law, which do not require a response. To the extent this paragraph contains allegations of fact, those allegations are denied.

XXXVI. The allegations contained in this paragraph are conclusions of law, which do not require a response. To the extent this paragraph contains allegations of fact, those allegations are denied.

XXXVII. The allegations contained in this paragraph are conclusions of law, which do not require a response. To the extent this paragraph contains allegations of fact, those allegations are denied.

XXXVIII. The allegations contained in this paragraph are conclusions of law, which do not require a response. To the extent this paragraph contains allegations of fact, those allegations are denied.

XXXIX. The allegations contained in this paragraph are conclusions of law, which do not require a response. To the extent this paragraph contains allegations of fact, those allegations are denied.

XL. The allegations contained in this paragraph are conclusions of law, which do not require a response. To the extent this paragraph contains allegations of fact, those allegations are denied.

XLI. The contents of this paragraph relate to Priva's request for an oral hearing, which does not require a response. To the extent a response is required, AIM refers to governing scheduling order in this case, which addresses both parties' oral hearing requests.

AFFIRMATIVE DEFENSES

1. Priva failed to mitigate its damages, if any.
2. Priva's claims are barred to the extent evidence has been spoliated due to destruction or modification by Priva.
3. Priva's claims are barred by the equitable doctrine of laches, unclean hands, waiver, and estoppel.
4. Any alleged violations of the Shipping Act or any other acts of AIM were not the proximate cause of any alleged loss or damages.

5. Priva's claims are barred by its own violations of the Shipping Act.
6. Any damages Priva allegedly sustained were proximately, directly, and solely caused by the acts of third persons over whom AIM had and has no direction or control.
7. AIM did not commit a Shipping Act violation and is not liable to Priva any cause of action alleged in Priva's counterclaim.
8. Priva fails to state a claim against AIM on which relief can be granted.
9. Priva knowingly and intentionally assumed all risks, which bars its recovery of any alleged damages.
10. Any alleged damages were caused by a force majeure.
11. AIM acted reasonably and justly while Priva acted unreasonably and unjustly.
12. Priva lacks standing to assert the claims in the Counterclaim or seek the relief requested.
13. The Counterclaim or parts of the Counterclaim are barred by the applicable statute of limitations, contractual terms between the subject parties or the doctrine of laches.
14. Priva's alleged damages are speculative or lack specificity precluding the recovery of any such damages.

WHEREFORE, American Iron & Metal Company, Inc. requests that Priva Logistics, Inc.'s Counterclaim be dismissed or that an Order be entered in favor of American Iron & Metal Company, Inc. and denying Priva Logistic, Inc.'s Counterclaim and awarding costs, fees, including reasonable attorneys' fees and disbursements of this action, as well as such other and further relief the Federal Maritime Commission may deem just and proper.

FLASTER/GREENBERG P.C.

Dated: August 14, 2025

/s/ Eric Palombo

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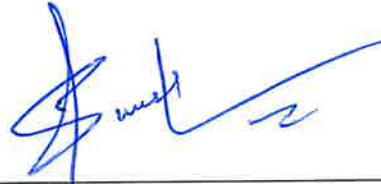
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*Attorneys for Complainant and Counter-
Respondent, American Iron & Metal Company Inc.*

VERIFICATION

I, SURESH KALAGARA, Vice President of Operations at American Iron & Metal Company Inc. verify under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Date: August 14, 2025



Suresh Kalagara,
Vice President of Operations

CERTIFICATE OF SERVICE

I certify that, on August 14, 2025, a true and correct copy of American Iron & Metal Company, Inc.'s Verified Answer to Priva Logistics, LLC's Verified Counterclaim were served on the following via email:

Office of the Secretary
Federal Maritime Commission
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By: s/ Eric C. Palombo
Eric C. Palombo

Date: August 14, 2025